



U.S. Department  
of Transportation  
**Research and  
Special Programs  
Administration**

400 Seventh St., S.W.  
Washington, D.C. 20590

**SEP 25 2003**

DOT-E 13116  
(SECOND REVISION)

|                                    |
|------------------------------------|
| EXPIRATION DATE: February 28, 2005 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Chromatography Research Supplies, Inc.  
Louisville, KY
2. PURPOSE AND LIMITATION:
  - a. This exemption authorizes the transportation in commerce of certain gas filters containing small quantities of self-heating solids as dangerous goods in apparatus. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101, column (7) in that Special Provision 136 is not shown as an exception for the proper shipping name "self-heating solid, inorganic, n.o.s.".
5. BASIS: This exemption is based on the application of Chromatography Research Supplies, Inc. dated April 7, 2003 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous Materials Description |                           |                       |               |
|---------------------------------|---------------------------|-----------------------|---------------|
| Proper Shipping Name            | Hazard Class/<br>Division | Identification Number | Packing Group |
| Dangerous Goods in Apparatus *  | 9                         | UN3363                | III           |

\*NOTE: Activated copper and copper oxide are the only materials authorized for shipment in the gas filters under the terms of this exemption.

7. SAFETY CONTROL MEASURES:a. PACKAGING -

(1) The gas filters are manufactured by Chromatography Research Supplies (CRS) Inc. and are described in the exemption application on file with the Office of Hazardous Materials Exemptions and Approvals as follows:

(i) CRS Model 1000 - High Capacity Oxygen Filter as shown on meeting CRS drawing 201tscnp.dwg Rev 1 dated August 9, 2001; or

(ii) A component of the CRS 202800 - Gas Purifier System as shown on CRS drawing ngpssca.dwg dated March 16, 2001.

(iii) A component of the CRS 202800 - Gas Purifier System as shown on CRS drawing ngpsocrs.dwg, which may not contain more than 30 grams of self heating solid.

(2) The gas filters containing hazardous material must be filled with a gas blanket of nitrogen or inert gas prior to shipping. The filter shall not be pressurized during shipment.

(3) The gas filters must be securely sealed by threaded fittings or other equally effective means.

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(4) The gas filters must be packaged in strong outer packages in accordance with the provisions of § 173.222 for dangerous goods in equipment, machinery or apparatus with the following additional limitations:

(i) Each outer package shall not contain a net mass of hazardous material exceeding 15.0 kg; and

(ii) Each outer package shall not have a gross mass exceeding 30.0 kg.

(5) The marking, labeling and placarding requirements of § 172.102(c)(1) Special Provision 136 apply to shipments made under this exemption.

b. OPERATIONAL CONTROLS: Activated copper and copper oxide are the only materials authorized for shipment in the gas filters under the terms of this exemption.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

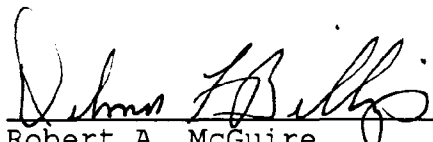
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

*for*   
\_\_\_\_\_  
Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DB/AM